

Court No. - 37

Case :- WRIT - C No. - 13149 of 2003

Petitioner :- M/S Awadh Steels & Alloys (P) Ltd. & Another

Respondent :- U.P. Power Corporation & Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- Vinod Mishra,Sc

Hon'ble Sunil Ambwani,J.

Hon'ble Aditya Nath Mittal,J.

We have heard Sri B.C. Rai, learned counsel appearing for the petitioners.

The petitioners have challenged Clause 4.55 of the Electricity Distribution Code as far as it discriminates the consumers, who have the contracted load exceeding 10 MW in giving them an option to furnish the security by way of bank guarantee, which is not permitted for the other large and heavy industrial consumers, having the contracted load below 10 MW.

By interim order dated 27.3.2003, it was provided that in case the petitioners submit the bank guarantee for the amount asked from them against the security deposit to the satisfaction of respondent no.2, the necessary steps in the matter may be taken.

Section 47 of the Electricity Act, 2003 provides for reasonable security to be determined by the Regulation.

The U.P. Electricity Distribution Code, 2002 has since been repealed and the U.P. Electricity Code, 2005 has been made under the Electricity Act, 2003. The Clause 4.20 of the Electricity Supply Code, 2005 does not provide for any distinction between the consumers of different load capacities. The security is now common for all the categories of heavy consumers.

Learned counsel for the petitioners submit that in view of the repeal of the Electricity Distribution Code 2002, and a making of the new Electricity Supply Code 2005, the reliefs claimed in this writ petition have become infructuous.

The writ petition is accordingly dismissed as having become infructuous.

Order Date :- 30.5.2012

Kpy